

Whangarei District Council Meeting Minutes

Date: Thursday, 26 October, 2023
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka

Scribe N. Pestana (Team Leader, Democracy)

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a prayer.

2. Declarations of Interest / Take Whaipānga

Item 1.4 - Appointment of Council Trustee on Whangarei Art Trust Board.

3. Apologies / Kore Tae Mai

Cr Paul Yovich (absent), Cr Ken Couper and Cr Carol Peters (late arrival).

Moved By His Worship the Mayor

Seconded By Cr Marie Olsen

That the apologies be sustained.

Carried

Cr Peters joined the meeting at 9.02am.

4. Public Forum / Huihuinga-a-tangata

Stephen Gibson (Bream Bay Shared Path Steering Group) – Bream Bay Shared Path Network.

Norah Shayeb (Northland Toxin Awareness Group) – Roadside spraying and vegetation management in public places with toxic herbicides.

Jackie Henare – Night shelter for the homeless in Whangarei.

5. Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held on 28 September 2023

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 28 September 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Better Off Funding Reporting and Assurance Decision

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That the Council

1. Notes the Better Off Funding Portfolio management mechanisms and Terms of Working Relationship have been prepared through engagement and collaboration with Te Huinga representatives.
2. Approves the governance and management mechanisms for the Māori Wellbeing Fund / Kaupapa Māori Programme contestable grants fund to enable the project to move into the implementation phase.
3. Approves bi-monthly reporting on delivery of the Māori Wellbeing Fund to Te Kārearea Strategic Partnership, and 6-monthly reporting that includes the report to Crown Infrastructure Partners to align with government reporting timeframes.

4. Notes that the Council's opposition to the government's Three Waters Reform remains unchanged.

Carried

6.2 Temporary Road Closure - InnoNative Market

Moved By Cr Carol Peters

Seconded By Cr Deborah Harding

That the Council

1. Approves the temporary closure of the following roads to ordinary traffic for the InnoNative Market on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Saturday 28 October 2023

Reyburn House Lane, from 183 Reyburn House Lane to 68 Reyburn house Lane.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.3 Review - Designation for Emergency Management of Buildings

Moved By Cr Nicholas Connop

Seconded By Cr Simon Reid

That the Council resolves pursuant to s133BG (1) of the Building Act 2004 that the designation put in place on 15 February 2023 is still needed for the emergency management of affected buildings.

Carried

6.4 Aotearoa Reorua WHANGĀREI

Moved By Cr Phoenix Ruka

Seconded By Cr Carol Peters

That the Whangārei District Council;

1. Notes this report;
2. Note that the Te Kārearea Strategic Partnership Standing Committee has endorsed this initiative to be progressed to Council for Whangārei to be included in the 2023 cohort of *Aotearoa Reorua*.
3. Note that the primary outcome of this initiative is the development of a Māori language strategy between councils and their tangata whenua partners.
4. Note all costs for the development of the language strategy is resourced by Aotearoa Reorua which is led by the Department of Internal Affairs.
5. Note that the development of a Māori language strategy does not impose any compulsory short- or long-term cost implications on the Whangārei District.
6. Approve Whangārei City to be included in the 2023 cohort of *Aotearoa Reorua*.

Carried

6.5 Notice of Motion - Fluoridation

Moved By Cr Phil Halse

Seconded By Cr Gavin Benney

1. That Council considers the implication of adding Fluoridation to the Whangare District Council's public water supplies.
2. That Councillors who represent the Whangare District Council area seek guidance from the residents of the Whangārei district by consulting on having Fluoride added to any of Council's public water supplies in accordance with the requirements of the Local Government Act 2002.

Carried

On the motion being put Cr Connop called for a division.

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney	X		
Cr Nicholas Connop		X	
Cr Ken Couper		X	

Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Results	7	6	0
Carried (7 to 6)			

Cr Couper joined the meeting at 10.30am during discussion on Item 6.5.

6.6 Water Treatment Plants Fluoridation Contract Award

Moved By Cr Marie Olsen

Seconded By Cr Jayne Golightly

That Council:

1. Ceases fluoridation requirements until the result of the consultation is known.
2. Undertakes a consultation process with Whangarei District residents.
3. Writes urgently to the incoming government seeking whether they support or otherwise the directive from the Director General of Health to mandate fluoridation.

Amendment

Moved By Cr Nicholas Connop

Seconded By Cr Scott McKenzie

That Council:

1. Notes legal advice that:
 - a. Council does not have standing to seek an injunction on the basis of another parties' legal proceedings.
 - b. There does not appear to be any realistic grounds for Council to seek relief.

- c. Any attempt to pursue relief through judicial review/interim relief would be expensive and is likely to be contested by the Ministry of Health.
- 2. Approves the Chief Executive to authorise funding agreement.
- 3. Approves amount of \$2,901,133 in addition to the \$1,600,000 budgeted amount in the 2023-24 Annual Plan making a total budgeted amount of \$4,501,133 plus GST for fluoridation, of which \$4,403,133 is funded by Ministry of Health.
- 4. Approves the award of CON23011 for Water Treatment Plants Fluoridation Construction, to Bellcon Construction Limited for the sum of \$3,708,563.06 exclusive of GST.
- 5. Notes the total budget of \$4,501,133 excludes the fluoridation of Poroti Water Treatment Plant.
- 6. Notes that If the contract is not awarded:
 - a. Council may incur fines of up to \$200,000 if fluoridation has not been commenced by the dates directed, and further fines of \$10,000 per day during while the offence continues.
 - b. The Ministry may reduce or withdraw its \$4,403,133 funding, meaning that the costs of fluoridation could fall to ratepayers.
 - c. It is likely that the cost of the work will increase if fluoridation is implemented in the future.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Jayne Golightly

That point 7 be added to the amendment:

- 7. Writes urgently to the incoming government seeking whether they support or otherwise the directive from the Director General of Health to mandate fluoridation.

On the amendment being put Cr Connop called for a division.

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		

Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Results	11	2	0

The amendment was Carried (11 to 2)

Amendment

That Council:

1. Notes legal advice that:
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 - b. There does not appear to be any realistic grounds for Council to seek relief.
 - c. Any attempt to pursue relief through judicial review/interim relief would be expensive and is likely to be contested by the Ministry of Health.
2. Approves the Chief Executive to authorise funding agreement.
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6. Notes that If the contract is not awarded:
 - a. Council may incur fines of up to \$200,000 if fluoridation has not been commenced by the dates directed, and further fines of \$10,000 per day during while the offence continues.

- b. The Ministry may reduce or withdraw its \$4,403,133 funding, meaning that the costs of fluoridation could fall to ratepayers,
- c. It is likely that the cost of the work will increase if fluoridation is implemented in the future,

- 7. Writes urgently to the incoming government seeking whether they support or otherwise the directive from the Director General of Health to mandate fluoridation.

On the amendment being put Cr Reid called for a division.

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Results	12	1	0

The amendment was Carried (11 to 2)

Substantive motion

That Council:

1. Notes legal advice that:
 - a. Council does not have standing to seek an injunction on the basis of another parties' legal proceedings.
 - b. There does not appear to be any realistic grounds for Council to seek relief.
 - c. Any attempt to pursue relief through judicial review/interim relief would be expensive and is likely to be contested by the Ministry of Health.
2. Approves the Chief Executive to authorise funding agreement.

3. Approves amount of \$2,901,133 in addition to the \$1,600,000 budgeted amount in the 2023-24 Annual Plan making a total budgeted amount of \$4,501,133 plus GST for fluoridation, of which \$4,403,133 is funded by Ministry of Health.
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6. Notes that If the contract is not awarded:
 - a. Council may incur fines of up to \$200,000 if fluoridation has not been commenced by the dates directed, and further fines of \$10,000 per day during while the offence continues.
 - b. The Ministry may reduce or withdraw its \$4,403,133 funding, meaning that the costs of fluoridation could fall to ratepayers,
 - c. It is likely that the cost of the work will increase if fluoridation is implemented in the future,
7. Writes urgently to the incoming government seeking whether they support or otherwise the directive from the Director General of Health to mandate fluoridation.

On the substantive motion being put Cr Connop called for a division.

Recorded	For	Against	Abstain
His Worship the Mayor	X		
Cr Gavin Benney		X	
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		

Results**12****1****0****The substantive motion was Carried (11 to 2)****7. Public Excluded Business / Rāhui Tangata****Moved By** Cr Simon Reid**Seconded By** Cr Marie Olsen

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

RESOLUTION TO EXCLUDE THE PUBLIC			
Move/Second			
That the public be excluded from the following parts of proceedings of this meeting.			
The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:			
General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 28 September 2023	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Land Purchase		
1.3	Land Purchase		
1.4	Appointment of Council Trustee		
1.5	Deed of Lease Next Steps		
1.6	Reconsideration of Notice of Motion - Councillor Gavin Benney		
1.7	Notice of Motion - Councillor Gavin Benney		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:		
Item	Grounds	Section
1.1	For the reasons stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(i)
1.4	To protect the privacy of natural persons including that of a deceased person.	Section 7(2)(a)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(i)
1.6	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)
1.7	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)

Carried

A short break was taken from 11.22am to 11.32am before the confidential section of the meeting.

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a prayer at 12.29pm.

Confirmed this 23rd day of November 2023

His Worship the Mayor Vince Cocurullo (Chairperson)

